



1

MCRC-11696-2026

IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR

BEFORE

HON'BLE SHRI JUSTICE HIMANSHU JOSHI

ON THE 11th OF AUGUST, 2026MISC. CRIMINAL CASE No. 11696 of 2026*SATISH SANPAL**Versus**THE STATE OF MADHYA PRADESH*

.....
Appearance:

Shri Naman Nagrath - Senior Advocate with Shri Anushasit Arya - Advocate for the applicant.

Shri B.D. Singh - Addl. Advocate General with Ms. Priyanka Mishra - Govt. Advocate for respondent/State.

Reserved on : 29.07.2026

Pronounced on : 11.08.2026

.....

ORDER

This petition under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 has been filed by the petitioner seeking quashment of FIR No.270/2022 registered at Police Station Omti, District Jabalpur, for offences punishable under Section 4-A of the Public Gambling Act and Section 120-B IPC, along with RCT No.3373/2023 and all consequential proceedings arising therefrom.

2. The facts, in brief, are that on 28.05.2022 the police received secret information that co-accused Indrajeet Singh was concealing proceeds generated from illegal betting activities. Acting upon the information, the police conducted a raid and allegedly recovered cash amounting to Rs. 47,50,000/- from the possession of the co-accused. During investigation, memorandum statements of the co-accused were recorded and the name of



the present petitioner surfaced as a person connected with the betting operations. On completion of investigation, charge-sheet was filed and the petitioner was arrayed as an accused in RCT No.3373/2023.

3. Learned counsel for the petitioner submits that the entire prosecution against the petitioner is founded upon suspicion, inadmissible memorandums of co-accused persons and a highly doubtful investigation, and that there is no legally admissible material connecting the petitioner with the alleged betting activities. It is submitted that the prosecution case originates from an alleged secret information received on 28.05.2022 to the effect that co-accused Indrajeet Singh had concealed the proceeds of alleged betting activities in a bag. Pursuant thereto, a raid was allegedly conducted at the premises of Indrajeet Singh and an amount of Rs. 47,50,000/- was allegedly recovered. The petitioner was neither present at the spot nor was any incriminating article recovered from his possession. His name was subsequently introduced in the alleged memorandum of the co-accused, which, according to the petitioner, is nothing but an attempt to falsely implicate him.

4. Learned counsel further submits that the very genesis of the prosecution is rendered doubtful by the absence of any Roznamcha/DD entry recording receipt of the alleged secret information. It is further submitted that there are serious and unexplained discrepancies in the manner in which the prosecution claims to have conducted the raids. FIR No.270/2022 at Police Station Omti was registered at about 10:45 p.m. on 28.05.2022, whereas FIR No.271/2022 was registered at 10:59 p.m. on the very same day. Thus,



according to the prosecution itself, two separate raids were allegedly conducted and completed at the same place within a span of merely fourteen minutes. The circumstance, coupled with the identical factual background and the alleged involvement of the same persons, seriously undermines the prosecution version. It is also pointed out that the name of Indrajeet Singh, who is an accused in the present FIR, appears in the brief facts of FIR No.271/2022 as an accused therein as well. This, according to learned counsel, demonstrates that the prosecution story has been prepared mechanically and contains a material copy-paste error, thereby creating a serious doubt regarding the genuineness of the entire prosecution case.

5. It is further submitted that the petitioner has not visited India since 14.03.2020 and was admittedly not present in the country when the alleged incident took place on 28.05.2022. The FIR was registered behind his back and the petitioner had no opportunity whatsoever to participate in the alleged occurrence. Although he subsequently came to know of the proceedings and was granted regular bail by orders dated 22.12.2025 and 23.12.2025, his absence from India at the relevant time remains a significant circumstance demonstrating the lack of any direct role attributed to him. It is contended that the prosecution has failed to collect any independent or corroborative material showing either active or passive participation of the petitioner in the alleged betting activities. There is no material demonstrating any financial transaction, money trail, communication, meeting, agreement, conspiracy or other circumstance connecting the petitioner with the alleged co-accused or the seized amount. Learned counsel submits that the expression “Sanpal



Gang” occurring in the alleged secret information cannot, by itself, establish the existence of any criminal gang or the petitioner's association therewith. No independent material has been collected to establish either the existence of such a gang or the petitioner's membership thereof. The prosecution, it is submitted, has substantially relied upon the alleged memorandums of the co-accused persons wherein the name of the petitioner is stated to have been introduced by the Investigating Officer. Such memorandums, insofar as they implicate a co-accused, have no substantive evidentiary value and cannot, in the absence of independent corroboration, constitute the foundation for continuing criminal proceedings against the petitioner.

6. It is further submitted that the alleged electronic evidence also does not implicate the petitioner. The chats relied upon by the prosecution are between the co-accused and other persons; no mobile number belonging to the petitioner is linked with the said chats and there is no reference to the petitioner therein. Even the mobile phones of the co-accused were sent for forensic examination to the Cyber Cell, Bhopal, but no material has surfaced from the forensic examination connecting the petitioner with the alleged offence. Learned counsel further submits that the amount of Rs. 47,50,000/- allegedly seized from Indrajeet Singh has never been claimed by the petitioner and there is no material suggesting that the said amount belonged to, or was intended for, the petitioner. On the contrary, the co-accused has himself claimed the seized amount. Thus, the recovery does not furnish any nexus between the petitioner and the alleged offence. It is also submitted that the alleged independent witness, Bobby @ Pramodendra Rajak, is a recurring



witness in multiple cases arising from the same Police Station, including the present case, FIR No.271/2022 and FIR No.258/2022. His repeated presence as an alleged public witness raises a serious question regarding the independence and credibility of the investigation. Significantly, even the said witness has not stated that the co-accused Indrajeet Singh disclosed the name of the petitioner in his memorandum. Learned counsel submits that the petitioner has also been implicated in other FIRs on the basis of similar alleged memorandums of co-accused persons, despite there being no independent material establishing his connection with the concerned accused or the alleged offences. The recurring nature of such implication, according to the petitioner, demonstrates a pattern of mechanically introducing his name in the investigation.

7. It is specifically contended that the essential ingredients of Section 4-A of the Public Gambling Act are not attracted against the petitioner. The prosecution has not identified any specific act of printing, publishing, disseminating or attempting to disseminate any digits, figures, signs, symbols or pictures attributable to the petitioner. There is no specific overt act, publication, circulation or other material demonstrating the petitioner's conscious involvement in promoting or facilitating the alleged gambling activity. It is further submitted that there is no invitation to play, no transaction or money trail, no email, no chat, no call record or other electronic communication emanating from the petitioner which could establish even a prima facie nexus between the petitioner and the alleged betting activities. Thus, the prosecution case against the petitioner rests



essentially upon suspicion and the alleged statements/memorandums of co-accused persons, unsupported by independent corroboration. Learned counsel submits that the continuation of the criminal proceedings in the aforesaid circumstances would amount to abuse of the process of law. The inherent jurisdiction of this Court under Section 482 of the Cr.P.C./Section 528 of the BNSS, 2023 can be exercised even after filing of the charge-sheet where the material collected during investigation does not disclose the commission of an offence by the accused or where continuation of the proceedings would otherwise amount to abuse of process. It is also submitted that where the allegations, even if taken at their face value, do not disclose the essential ingredients of the alleged offences, or where the proceedings are manifestly attended with mala fides and are instituted with an ulterior motive, the High Court is justified in exercising its inherent jurisdiction to prevent abuse of process. On the cumulative consideration of the aforesaid circumstances, learned counsel submits that there is no legally sustainable material connecting the petitioner with the alleged betting operation; the petitioner was not present in India at the relevant time; no recovery has been effected from him; the seized amount has not been claimed by him; there is no money trail or electronic communication linking him with the alleged offence; and the prosecution substantially rests upon the alleged memorandums of co-accused persons without independent corroboration. It is, therefore, submitted that continuation of the criminal proceedings against the petitioner would serve no legitimate prosecutorial purpose and would amount to abuse of the process of law. The petition may accordingly be



allowed and FIR No.270/2022 registered at Police Station Omti, District Jabalpur, and all consequential proceedings arising therefrom, insofar as they relate to the petitioner, may kindly be quashed in the interest of justice. Reliance has also been placed upon the principles laid down in following case laws :

(i). **State of Haryana Vs. Bhajan Lal**, reported in 1992 Supp (1) SCC 335,

(ii). **Vineet Kumar Vs. State of U.P.**, reported in (2017) 13 SCC 369,

(iii). **Zandu Pharmaceutical Works Ltd. Vs. Mohd. SharafulHaque** , reported in (2005) 1 SCC 122.

(iv) **MadhavraoJiwaji Rao ScindiaVs. Sambhajirao Chandrojirao Angre**, reported in AIR 1988 SC 709.

(v) **Vinod Bihari Lal Vs. State of U.P. & Anr.** passed in SLP (Crl.) Nos. 5376-5377/2023

(vi) **Anwar Hussain Vs. State of M.P.** passed in SLP (Crl.) No. 14087/2025

(vii) **Nein Singh Dhruve and others Vs State of MP** passed by High Court of Madhya Pradesh in Cr.A No. 306/2024.

(viii) **Pradeep Shrma Vs. State of M.P.** passed by High Court of Madhya Pradesh in Cr.R No. 1789/2020.

(ix) **Mohar Singh Vs. State of M.P.** passed by High Court of Madhya Pradesh in M.Cr.C No. 41528/2021.

(x) **Amresh Singh Vs. State of MP** passed by High Court of Madhya Pradesh in M.Cr.C No. 15550/2024.



(xi) **Sonu Raghuvanshi Vs. State of M.P.** passed by High Court of Madhya Pradesh in M.Cr.C No. 3436/2025.

(xii) **Subhan Vs. State of M.P.** passed by High Court of Madhya Pradesh in Cr.R No. 1240/2009.

8. Per contra, learned counsel for the State opposed the petition and submitted that the investigation has culminated in filing of a charge-sheet after collection of material indicating the involvement of the petitioner in the alleged betting network. It is contended that apart from the memorandum statement, the investigating agency has collected other circumstances and material during investigation and the sufficiency or reliability of such evidence cannot be examined in proceedings under Section 528 BNSS. It is further submitted that the issues raised by the petitioner involve disputed questions of fact which can only be adjudicated during trial and no case for exercise of inherent jurisdiction is made out. It is submitted that the petitioner is attempting to invite this Court to undertake a meticulous examination of the case diary, statements of witnesses, memorandums, electronic evidence and other material collected during investigation. Such an exercise is impermissible while exercising jurisdiction under Section 482 Cr.P.C./Section 528 of the BNSS, particularly when the investigation has culminated in filing of the charge-sheet and the material collected discloses a prima facie case.

9. Learned counsel for the State further submits that the absence of the petitioner from India on the date of the alleged raid does not, by itself, exonerate him. The prosecution case is that the petitioner was associated with



the betting operation and that the illegal activities were being conducted through a network of persons. Physical presence at the place of recovery is, therefore, not an indispensable requirement for establishing his involvement in the alleged conspiracy or other offences. The petition is therefore liable to be dismissed, leaving all questions of fact and law open for consideration by the learned Trial Court.

10. Heard the arguments advanced by the parties and perused the case diary.

11. At the outset, it is well settled that while exercising inherent jurisdiction for quashing of an FIR or criminal proceedings, this Court is not required to undertake a meticulous appreciation of the evidence or examine whether the material collected by the prosecution would ultimately result in conviction. The limited enquiry is whether, on the basis of the allegations and material collected during investigation, a prima facie case is disclosed and whether continuation of the proceedings would amount to abuse of the process of law.

In the present case, the investigation has already culminated in filing of the charge-sheet. The prosecution has not relied merely upon the fact that the petitioner was associated with the co-accused at the place of recovery. The case of the prosecution is that the petitioner was connected with the alleged betting network and his name surfaced during the course of investigation through the material collected by the Investigating Officer. Whether such material is admissible, reliable and sufficient to establish the petitioner's involvement, and whether the same is corroborated by other circumstances,



are matters which necessarily require appreciation of evidence during trial. The contention of the petitioner that his implication rests exclusively upon the memorandum statements of co-accused persons cannot, at this stage, be accepted as a ground for quashing the proceedings. The evidentiary value of such statements, the circumstances in which they were recorded, and their effect when considered along with the other material collected during investigation are matters for the Trial Court. This Court, while exercising jurisdiction under Section 528 of the BNSS, cannot undertake a detailed evaluation of the prosecution evidence as if conducting a trial. Likewise, the discrepancies pointed out by the petitioner with regard to the timing of FIR Nos.270/2022 and 271/2022, the contents of the FIRs, the alleged repetition of the independent witness, absence of a Roznamcha entry, and other alleged irregularities in the investigation, even if taken into consideration, do not, at this stage, demolish the entire prosecution case. These are essentially matters relating to the manner of investigation and appreciation of evidence, which can be appropriately examined by the learned Trial Court on the basis of the evidence adduced by the prosecution and the defence.

12. The plea that the petitioner was not present in India on 28.05.2022 also does not, by itself, render the prosecution against him untenable. The allegation against the petitioner is not founded upon his physical presence at the place from where the cash was recovered but upon his alleged association with the betting network. In a case involving an alleged conspiracy or organised betting operation, physical presence at the place of recovery is not necessarily an indispensable ingredient. Whether the petitioner, despite being



outside India, was actually connected with the alleged activities is a factual question which cannot be conclusively determined in proceedings under Section 528 of the BNSS. Similarly, the absence of recovery from the personal possession of the petitioner or the fact that the seized amount was not claimed by him cannot, by themselves, be treated as sufficient to terminate the prosecution. The effect of the recovery and its connection, if any, with the petitioner has to be determined on the basis of the entire prosecution evidence. The submissions regarding absence of any money trail, electronic communication, call record or independent corroboration also essentially invite this Court to examine the sufficiency and probative value of the material collected during investigation. Such an exercise falls outside the permissible scope of inherent jurisdiction. At this stage, the Court is not required to determine whether the prosecution will ultimately succeed in proving the case beyond reasonable doubt.

13. As regards the applicability of Section 4-A of the Public Gambling Act, the petitioner seeks an interpretation of the material collected during investigation in his favour and contends that no specific overt act attributable to him has been established. However, the question whether the material collected satisfies the ingredients of the alleged offence, when read as a whole, is required to be examined in the factual setting of the case. At the stage of quashing, the Court cannot dissect the prosecution material into isolated pieces and conduct a mini-trial. The reliance placed upon the decisions cited by learned counsel for the petitioner does not advance his case. The principles governing exercise of inherent jurisdiction under Section



482 Cr.P.C., now corresponding to Section 528 of the BNSS, are well settled; however, the question whether those principles warrant interference depends upon the facts and material available in each individual case. The authorities relied upon by the petitioner do not lay down a proposition that every prosecution based upon statements of co-accused or circumstantial material must necessarily be quashed at the threshold.

14. It is also significant that the present proceedings arise after completion of investigation and filing of the charge-sheet. The material collected by the Investigating Agency cannot be discarded merely on the basis of the defence explanation at this preliminary stage. The defence of the petitioner, including his alleged absence from India, the nature of his relationship with the co-accused, the genuineness and evidentiary value of the memorandums, the alleged absence of electronic or financial linkage and the alleged irregularities in investigation, are all matters which can be effectively tested in the course of trial. This Court is, therefore, not persuaded to hold that the allegations and material collected during investigation, even if taken at their face value, fail to disclose any offence or that the prosecution is manifestly frivolous or vexatious. Equally, the case does not fall within the exceptional categories warranting exercise of inherent jurisdiction for preventing abuse of the process of law.

15. Consequently, without expressing any opinion on the merits of the case or the evidentiary value of the material collected during investigation, this Court finds no sufficient ground to interfere with the criminal proceedings at this stage. The petitioner shall be at liberty to raise all his factual and legal



13

MCRC-11696-2026

defences before the learned Trial Court, which shall consider the same independently in accordance with law. Accordingly, the petition is **dismissed**.

16. The observations made herein are confined solely to the adjudication of the present petition under Section 528 of the BNSS, 2023 and shall not prejudice the petitioner or the prosecution at the stage of trial.

(HIMANSHU JOSHI)
JUDGE

rv